

citation again only states that Shi was the only “actively” using the application to pick up and transport “passengers” – not Plaintiff. (See Uber’s Reply, p. 2:17-21.) Uber does not provide any evidence of Plaintiff requesting a ride on the date of the incident or otherwise being a passenger in Shi’s vehicle and Uber otherwise fails to establish the existence of an arbitrable controversy.

The issues of delegation, consent, or unconscionability are not reached because Uber fails to meet its initial burden to establish the existence of an applicable arbitration agreement.

5.

CASE #	CASE NAME	HEARING NAME
UDCO2600405	AMFP VII ESPLANADE LLC vs GOMEZ	MOTION FOR SUMMARY JUDGMENT ON UNLAWFUL DETAINER

Tentative Ruling:

Plaintiff AMFP VII Esplanade LLC’s Motion for Summary Judgment is denied.

Trial is set for 8/28/26; Trial Readiness Conference is set for 8/21/26.

From commencement to conclusion, the party moving for summary judgment bears the burden of persuasion. (*Aguilar v. Atlantic Richfield Company* (2001) 25 Cal.4th 826, 855.) When a plaintiff is the moving party, the plaintiff has the burden to produce admissible evidence on each element of a cause of action entitling him to judgment. (Code Civ. Proc., § 437c(p)(1).) The plaintiff does not have the burden to disprove affirmative defenses. (*Id.*) At that point, the burden shifts to the defendant to show that a triable issue exists. (*Id.*)

“An action for unlawful detainer is a summary proceeding. [Citation] The statutory scheme is intended and designed to provide an expeditious remedy for the recovery of possession of real property. [Citation.] Unlawful detainer actions are, accordingly, of limited scope, generally dealing only with the issue of right to possession and not other claims between the parties, even if related to the property.” (65283 *Two Bunch Palms Building, LLC v. Coastal Harvest II, LLC* (2023) 91 Cal.App.5th 162, 167.) In an unlawful detainer action, the plaintiff has the initial burden of proof as to all essential elements of the prima facie case. Thus, the landlord in an unlawful detainer has the burden of proving, at a minimum, the existence of the landlord-tenant relationship, termination of that relationship, and the tenant’s continued possession of the premises. (*Ahlens v. Barrett* (1906) 4 Cal.App. 158, 160.)

Notice

Unlawful detainer actions are authorized and governed by statute, which is strictly construed. (See Code Civ. Proc. § 1161 *et seq.*; *U.S. Financial, L.P. v. McLitus* (2016) 6 Cal.App.5th Supp. 1, 3.) “The statutory scheme is intended and designed to provide an

expeditious remedy for the recovery of possession of real property.” (*Taylor v. Nu Digital Marketing, Inc.* (2016) 245 Cal.App.4th 283, 288 [internal quotation marks omitted].)

“Section 1161(2) provides that a tenant is guilty of unlawful detainer when the tenant continues in possession of a rental property without the permission of the landlord after default in the payment of rent.” (*City of Alameda v. Sheehan* (2024) 105 Cal.App.5th 68, 75.) There is no dispute as to Defendant’s possession. The issue presented in this motion is notice.

“Proper service on the lessee of a valid three-day notice to pay rent or quit is an essential prerequisite to a judgment declaring a lessor’s right to possession under section 1161, subdivision 2.” (*Liebovich v. Shahrokhkhany* (1997) 56 Cal.App.4th 511, 513.) “If the landlord does not strictly comply with the requirements for a three-day notice, the landlord cannot prevail in an unlawful detainer action....” (*Eshagian v. Cepeda* (2025) 112 Cal.App.5th 433, 458.) Section 1161(2) requires a written notice; the amount of rent (and no more) due; the name, telephone number and address to whom the rent payment is to be made; and, if payment may be made personally, the usual days and hours the person will be able to receive the payments. For example, in *Eshagian*, the court found the notice deficient because 1) despite titled “3 Day Notice to Pay or Quit” it did not state the landlord would repossess the premises if the tenant did not pay rent prior to the expiration of the three day notice period; 2) the notice did not state when the notice period commenced or ended, nor that the three day period excluded weekends and judicial holidays; and 3) the notice did not provide the address where the rent could be paid. (*Eshagian*, supra, 112 Cal.App.5th at 459.) In *City of Alameda*, supra, 105 Cal.App.5th at 81-82, the failure to include the complete and accurate name of the corporation to whom rent should be paid rendered the notice defective.

According to both the complaint and the rental agreement, the monthly rent was \$2,563.00. (Complaint ¶6(a); Motion, Ex. 1.) The complaint and motion attach a 2 page 3 day notice, while Defendant provides a three page notice. The first two pages are part of a document titled: “CARES Act Covered Property Notice to Pay Rent or Surrender Possession.” It indicates that unpaid rent for 2/1/26 in the amount of \$2,563 was owed. It included the statutory language and was dated 2/10/26. However, the first day is excluded, and the last is included, unless the last day is a holiday, which is also excluded. (Code Civ. Proc. § 12.) Thus, the notice period began February 11, but the 12th (Thursday) was a judicial holiday, the 13th (Friday) is the second day, the 14th-15th are Saturday and Sunday, and the 16th (Monday) was a judicial holiday. Thus, the notice period expired February 17.

On the third page which Defendant included, it is titled “Notice to Pay Rent or Surrender Possession”, which identified how payment could be delivered. However, it states in bold “Notice Expires on 2/14/26 by 5 p.m.” (Oppo., p. 139/143.) Thus, Plaintiff gave an incorrect expiration date as it included judicial holidays and the weekend.

Furthermore, under section 1161(2), the name of the person to whom payment can be delivered to, and the usual hours are to be included. Page 2 of the notice identifies

Crystal Parizo, and indicates payment may be made 10 am to 6 pm. However, page 3 of the notice indicates that Kyesha Hoy or any available person between the hours of 8 am to 5pm. These discrepancies demonstrate that there is a triable issue of fact as to a defective 3 day notice. Accordingly, the motion is denied. The court need not address the affirmative defenses raised in the motion as they are not dispositive to the motion.